

On October 8, 2024, Petitioner filed a Request for Order (RFO) seeking orders for support and attorney's fees, orders regarding the sale of the rental property, and a business evaluation. She filed her Income and Expense Declaration concurrently therewith.

Respondent filed an RFO on December 13, 2024, seeking an order compelling discovery responses and sanctions. He filed another RFO the same day seeking an order for the residential rental properties to be managed by a third party. Both RFOs were served on December 16<sup>th</sup>.

A hearing was held and orders made on all issues on May 29, 2025 and then again on September 4, 2025. At the September 4<sup>th</sup> hearing the court was informed that the parties had reached a full stipulation which they would be filing soon. As such, the matter was continued to January 8, 2026 and the court continued to reserve jurisdiction on the issue of retroactivity of support. At the January 8<sup>th</sup> hearing the parties once again stated that they had reached a stipulation and they once again requested a continuance. The request was granted and the matter was continued to the present date.

The Supplemental Declaration of Petitioner Bryn Scharf-Williams was filed and served on March 5, 2026 along with her Income and Expense Declaration.

Respondent filed his Income and Expense Declaration on March 6<sup>th</sup>; it was served on March 5<sup>th</sup>.

After reviewing the filings as outlined above, the court does not find grounds to modify support at this time. The parties are still awaiting the completion of the business valuation and there have been clear fluctuations in the business income in the past year which would likely require a broader view of the business to get a more accurate picture of its value and Respondent's actual income for purposes of calculating support. The court is reserving jurisdiction to modify support back to the date of filing the RFO until after receipt and review of the business valuation. All current support orders remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH) however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #9: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT DOES NOT FIND GROUNDS TO MODIFY SUPPORT AT THIS TIME. THE PARTIES ARE STILL AWAITING THE COMPLETION OF THE BUSINESS VALUATION AND THERE HAVE BEEN CLEAR FLUCTUATIONS IN THE BUSINESS INCOME IN THE PAST YEAR**

WHICH WOULD LIKELY REQUIRE A BROADER VIEW OF THE BUSINESS TO GET A MORE ACCURATE PICTURE OF ITS VALUE AND RESPONDENT'S ACTUAL INCOME FOR PURPOSES OF CALCULATING SUPPORT. THE COURT IS RESERVING JURISDICTION TO MODIFY SUPPORT BACK TO THE DATE OF FILING THE RFO UNTIL AFTER RECEIPT AND REVIEW OF THE BUSINESS VALUATION. ALL CURRENT SUPPORT ORDERS REMAIN IN FULL FORCE AND EFFECT.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.